

Summer Daycare Agreement South Prairie Elementary Building

This Agreement (the "Agreement") is entered into this 27th day of April 2026 by the Dallas Center-Grimes Community School District (hereinafter referred to as "School") and the South Prairie Elementary Before and After School Program Inc., an Iowa non-profit corporation (hereinafter referred to as "Program").

In consideration of their mutual promises and the covenants contained herein, and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, it is hereby agreed by and between the parties as follows:

1. The Program shall be able to utilize space contained in the South Prairie Elementary School at 500 SW James Street in Grimes (the "Premises"), Iowa, for a summer daycare program for the 2026 summer from 6:30 AM to 6:00 PM Monday through Friday. This agreement shall be considered to have been in effect from June 8th, 2026 to ten working days prior to students starting.
1. This Agreement shall automatically renew if notice of non-renewal is not provided by either party to the other by June 1st of the current year. Any renewal shall be subject to updated terms as required by the School, which shall be presented to the Program before May 1st.
2. In consideration of the School providing the Premises, the Program will pay a rental fee of **\$82.00 per student** enrolled in the program. **(\$7,380 for the summer, based on 90 students) The Program will certify the number of students enrolled in the Program with the District Business Manager on June 1, 2026.**
3. Payment for this program may be made with either of the following options:
 - a. One payment no later than June 1 of each year.
 - b. Three equal payments to be paid by the 15th of the month for June, July, and August.
4. The Program shall be able to use the cafeteria, kitchen, and other rooms as available and specified by School administration. The Program will have access of the playground, restrooms, necessary hallways and other areas specified by School administration. The playground construction project could take approximately 3 weeks. The school will communicate the start date of construction and will communicate when daycare can be back out in that area. The gymnasium will only be available when not in conflict with School activities. All shared space usage shall be coordinated in advance with School administration.
5. The Program may use the kitchen for preparing snacks. Use of the kitchen does not include the consumption of any of the School's purchased food or food related items (i.e. ketchup, mustard. etc.). The School, however, has priority use of the kitchen for daily preparation of meals and School events. If the kitchen and/or cafeteria are to be used for such a School event, the School will notify the Program at least two (2) days in advance. Any kitchen equipment to be used by the Program will be specified by School administration. The Program shall be able to utilize 3-compartment sinks, preparation countertops, a specified space in the freezer and specified space in the refrigerator, and oven for warming meals in the summer. The Program shall not have access or use of dishwashers, steamers, warmers, mixers, or other large/small equipment or accessories within the kitchen. Kitchen surfaces and sinks must be properly sterilized prior to use and following use by the Program.
6. The Program will have full use of all chairs and tables in designated Premises areas, or as otherwise agreed upon by the parties. All other equipment to be supplied by the Program.
7. The Program will supply all of its own scissors, pencils, markers, and various other classroom supplies. The Program may not use the School supplies frequently found in the classroom. The Program will supply its own paper and will reimburse the School \$.10 per copy for use of the copy machines. The Program will provide its own audio-visual equipment.
8. The Program shall be solely responsible to ensure the Program is in compliance with applicable statutes, laws, ordinances, and guidelines. The Program shall obtain all permits and licenses and meet all

state requirements for the operation of the childcare program. A copy of all licensure must be submitted with this signed Agreement.

9. The Program has full responsibility for supervision of its employees, agents, and invitees. Nothing in this Agreement shall be construed as creating any responsibility on the School to oversee, supervise or in any manner direct the Program.

10. The Program will be responsible for assisting with maintenance of the Premises by daily cleaning of all tabletops and by cleaning up any craft or food remains. The Program shall act as a reasonably prudent person to keep the Premises clean and free and clear of all obstructions and nuisances in a reasonable and proper manner. The Program will not permit the Premises to be damaged or depreciated in value by any negligence or other act or omission of the Program or its directors, officers, employees, agents, representatives, invitees, or visitors, and the Program agrees to be responsible for any such damages, normal wear and tear excepted. The Program shall notify the School office immediately upon discovering any such damage.

11. The School will furnish a limited number of custodial staff on site for the month of June by daily cleaning and vacuuming of rooms, cleaning of the restrooms, and trash removal after the Program closing hour. In July more custodial staff will be working on a deep clean of the building. During the deep clean, communication from the school could include more restrictions on areas so custodial staff can get into those areas to clean.

12. The Program shall carry general liability insurance for protection from any liability arising out of any accident or other occurrence causing any injury and/or damage to any person or property upon the Premises due directly or indirectly to any act or omission of the insured, or any person claiming through or under the insured. The liability insurance policy shall have limits of not less than \$1,000,000 per occurrence and \$2,000,000 annual aggregate. The Program must also carry any insurance required by law, including, but not limited to, worker's compensation insurance. The Program shall present proof of such insurance to the School upon request.

13. The Program agrees to defend, indemnify, and hold harmless the School, and the School's directors, officers, employees, and agents, from and against any and all demands, claims, causes of action, liability, damages, losses, costs, and expenses (including reasonable attorney fees) arising from any act or omission of the Program under this Agreement. The obligations in this section shall survive expiration or termination of this Agreement.

14. In the event that it shall become necessary for either party to institute legal proceedings against the other party for recovery of any amounts due and owing under the Agreement, it is expressly agreed that the prevailing party in any such action shall be entitled to recover from the non-prevailing party all costs related to such collection, including reasonable attorney fees and all expert witness fees incurred during pre-suit collection attempts, suit, and post judgment, appeal, or settlement collection. The obligations in this section shall survive expiration or termination of this Agreement.

15. The Program shall comply with all federal, state, and local laws and regulations and School policies and rules applicable to the Premises and use thereof, specifically including, but not limited to, prohibitions on smoking in the building and on the grounds of the building pursuant to the Iowa Code Chapter 142D and restrictions on sex offenders pursuant to Iowa Code Chapter 692A. The Program shall not permit any activities on the Premises which violate such provisions. In addition, the Program shall not use, nor permit the use of, the Premises for any purpose which would adversely affect the value or character of the Premises or cause the Premises to lose exempt status for tax purposes.

16. Prior to its annual expiration, this Agreement may be terminated immediately by written notice by the School in the event that the Program loses the required licensure, permits, or breaches this Agreement. This Agreement may be terminated by either party for any reason upon thirty (30) days written notice. This Agreement may also be terminated at any time upon mutual agreement of the parties.

17. Directors of the Program shall meet in the spring and in the fall with representatives of School administrators. It is the responsibility of the Director of the Program to request and schedule these meetings.

18. This Agreement is subject to modification based on School board policy changes and

compliance by Program of the School board policies shall be a material condition of this Agreement.

19. All notices given under this Agreement shall be in writing, made by certified mail or personal delivery to the parties hereto, at the addresses of their respective central administrative office. The date of such notices will be deemed to be the date on which the notice is delivered, in the case of personal delivery, or the date on which the notice is delivered or attempted to be delivered as shown on the certified mail receipt, in the case of certified mail delivery.

The District:

Dallas Center-Grimes Community
School District
Attn: Superintendent
2405 W 1st Street
PO Box 680
Grimes, IA 50111

THE PROGRAM:

South Prairie Elementary Before
& After School Program Inc.

20. No waiver of the breach of any terms or conditions of this Agreement shall be valid unless in writing, nor shall any such waiver constitute a waiver of any other or succeeding breach of the same or other provisions of this Agreement.

21. Neither party may assign this Agreement, in whole or in part, without the prior written consent of the other party. Subject to the foregoing, this Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective successors and assigns.

22. The parties agree that if a dispute between the parties arises out of this Agreement, they would want the court to interpret this Agreement as follows: (i) with respect to any provision that it holds to be unenforceable, by modifying that provision to the minimum extent necessary to make it enforceable or, if that modification is not permitted by law, by disregarding that provision; (ii) if an unenforceable provision is modified or disregarded in accordance with this section, by holding that the rest of this Agreement will remain in effect; (iii) by holding that any unenforceable provision will remain as written in any circumstances other than those in which the provision is held to be unenforceable; and (iv) if modifying or disregarding the unenforceable provision would result in failure of an essential purpose of this Agreement, by holding the entire Agreement unenforceable.

23. This Agreement constitutes the complete and entire Agreement between the parties. None of the terms or conditions of this Agreement shall be in any manner altered or modified except by a written instrument duly signed by both parties.

Dallas Center-Grimes Community School District
Program

South Prairie Elementary Before & After School

Date _____
President

Date _____
President

Date _____
Board Secretary

Date _____
Program Director